ConnectedSuite

FOUNDER'S GUIDE · OWNERSHIP, STRUCTURE, PARTNERS AND INVESTORS

Keeping Control While the Estate Grows

How BirgenAI Hub holds ConnectedSuite, how Techcrast sells it, how the four-party agreement keeps every party out of conflict, and what is left to do so that no one but you decides what ConnectedSuite becomes.

For	Prepared	Status	Act on with
Emmanuel Birgen, founder	**27 October 2026**	**Guidance, not legal advice**	**A Kenyan advocate and tax adviser**

Strictly confidential: for the founder only. Do not forward to partners, Techcrast or investors.

ConnectedSuite is developed and owned by BirgenAI Hub Limited, founded by Emmanuel Birgen, and distributed by Techcrast Software Solutions Limited.

01 The structure, as decided on 27 October 2026

OWNER AND DEVELOPER

BirgenAI Hub Limited

Owns ConnectedSuite outright: code, models, designs, the Interchange protocol, the marks. You are its founder and the estate's lead engineer; any future engineer is hired by BirgenAI Hub. It invoices every ConnectedSuite subscription and is paid it.

DISTRIBUTOR

Techcrast

Packages and sells ConnectedSuite under its umbrella; its mark is the platform's face. It invoices only its own services (ServiceSuite licence and support) into its own paybill, and earns from distribution under a separate agreement with BirgenAI Hub.

FOUNDING LENDING PARTNERS

Axe and Micromart

Bound by the four-party Founding Partnership Agreement TC-FPA-2026-02. Each pays KES 30,000 a month from November 2026, rising only as they accept new systems (PeopleHub next).

This settles the problem the 20 October guide called "fix this first": a Techcrast invoice paid into your till. From 1 November each invoice is issued by the company that is paid it. BirgenAI Hub's goes to Till 5620596 and Techcrast's to Paybill 303030 (account 2044699985), and the code enforces it. No invoice can be paid to the other company's account.

Still to make true

Till 5620596 must be registered to **BirgenAI Hub Limited**, not to you personally, and BirgenAI Hub needs its own KRA PIN (printed on its invoices once you set BILLING_ISSUER_KRA_PIN) and bank account. If the till is in your own name, BirgenAI Hub's income lands in a personal account, which is the same tax problem in a new place. Move it before the first November payment arrives.

02 Where conflict could come from, and what stops it

POSSIBLE CONFLICT	WHAT THE AGREEMENT SAYS	CLAUSE
Techcrast claims ConnectedSuite because you are also engaged by Techcrast	Your dual role is disclosed. Techcrast confirms ConnectedSuite is BirgenAI Hub's, claims no right in it, and assigns any right it might have. It is represented by someone else whenever BirgenAI Hub and Techcrast deal with each other.	3.6, 10.2
Techcrast wants a share of the subscriptions	Its remuneration is in a separate distribution agreement, to be signed within 30 days, that never changes what lenders pay.	11.1
Techcrast changes prices or promises features	It may not change ConnectedSuite, its prices or its terms without BirgenAI Hub's written agreement.	3.4
Techcrast leaves, or the relationship sours	Its distribution role can end on 90 days' notice. The lenders stay with BirgenAI Hub and their subscriptions continue.	14.4
Axe and Micromart, who compete, see each other's customers	Only aggregates and bands are shared, never a lender's name or book. Using exchange data to target the other's borrowers is a breach with suspension and indemnity.	8.1–8.4, S3
One lender gets a better deal than the other	Equal prices, discount, rate card and rules for both, and a 24-month founding-terms protection.	5.7, 5.8

Micromart is exposed by sharing its Metropol contract	Micromart decides when the shared lane opens and may suspend it at once. It is reimbursed at cost plus a 10% fee, settled within 5 business days of collection. Overdue members are cut off automatically. The requesting member indemnifies it.	9.1–9.9
A lender is billed for something it never accepted	No fixed estate price. A system is billed only from the month after written or deemed acceptance, and the pilot is free.	5.2, 6
Money paid to the wrong company	Each invoice is paid only to the account on it; a misdirected payment is forwarded or refunded within 5 business days.	7.3
Somebody asks for equity	None passes under the agreement; any instrument would be separate and approved by the issuing board.	10.8
"Founding Partnership" read as a legal partnership	Expressly not a partnership under the Partnership Act, 2012, nor a joint venture or agency.	18.1
A dispute between two of the four	Product Council, then signatories, then mediation, then arbitration in Nairobi, among only the parties concerned, with service continuing throughout.	15

03 The order to get it signed

1. **Sammy Kegode first, alone.** Clause 10.2 (Techcrast confirms ConnectedSuite is BirgenAI Hub's) is the single most valuable signature you will collect. Walk him through it before the four-party meeting, with the distribution agreement's principles in hand, so that it is agreed before anyone else is in the room.
2. **Morris Martin on the bureau lane.** Micromart carries the Metropol risk. Let it tick Schedule 4 only once it is comfortable. If Metropol must be asked, Axe still starts on live exposure and the ecosystem reports, which need no bureau.
3. **Bennedict Omondi on PeopleHub.** Agree the acceptance criteria (the mockup and the blueprint) before the pilot begins, in writing, as clause 6.1 requires. Check the spelling of his name against his ID: the mockup writes "Benedict".
4. **All four sign**, each before a witness, each company stamping its block. Each party's advocate reviews the draft first.

04 The distribution agreement with Techcrast

This is the one commercial question the four-party agreement deliberately leaves to you and Techcrast. A defensible shape:

TERM	SUGGESTED	WHY
New lenders Techcrast introduces after 1 Nov 2026	20% of the ConnectedSuite subscription for the first 12 months, then 10% while the lender stays	Rewards selling and keeping, which is the distributor's job
The founding partners	Either nothing (Techcrast already earns its ServiceSuite fees from both) or a fixed 10%. Decide before you meet Sammy.	Removes the most likely friction point up front
Paid by	BirgenAI Hub, monthly, on subscriptions actually collected	Keeps every lender's invoice in BirgenAI Hub's name

Exclusivity	None. BirgenAI Hub may sell directly and through others	Fast Dial shows direct sales already happen
Term	12 months, renewing; 90 days' notice, matching clause 14.4	No lock-in on your platform

05 The Interchange as a revenue line

The rate card prices each bureau report at about 1.3 times the bureau's tax-inclusive charge, about 70% above its net price. Example: Credit Info (report 8) at KES 170 = 127.60 to Micromart for Metropol's charge and taxes + 10.00 contract-holder fee + 32.40 to BirgenAI Hub.

IF AXE PULLS EACH MONTH	AXE PAYS	MICROMART RECEIVES	BIRGENAI HUB KEEPS
500 Credit Info	85,000	68,800	16,200
1,000 Credit Info	170,000	137,600	32,400
1,000 Credit Info + 200 Credit Files	328,000	268,320	59,680

- **Hold the money properly.** The bureau's charge collected from Axe is Micromart's money in transit. Record it in a separate ledger account, settle Micromart within the 5 business days the agreement promises, and keep each month's usage statement.
- **Metropol.** A pull made for Axe under Micromart's subscriber code is Micromart's enquiry in Metropol's records. That is why Micromart controls the lane. The durable fix is either Metropol's written approval or Axe's own subscription connected through the Interchange, where Axe pays the bureau and you still earn the Interchange fee.
- **Get the regulatory opinion** on the Interchange under the Credit Reference Bureau Regulations, 2020 before the network grows past the founding members.

06 Holding the platform

1. **Assign your own work to BirgenAI Hub** by deed. The code, models, documents, designs and marks were created by you personally, so the company owns them only once you assign them. Do it now, before investors or partners ask.
2. **Move the repositories** from your personal GitHub account (emmanuel-arch) to a BirgenAI Hub organisation that you control, keeping yourself as owner.
3. **The domain and the server.** The estate runs on servicesuitecloud.com, whose name is Techcrast's product, and on the servicesuite-in server. Confirm in writing who owns both. If either is Techcrast's, register a ConnectedSuite domain in BirgenAI Hub's name, plan a move to it, and put a hosting arrangement in writing, so Techcrast cannot switch the estate off.
4. **Register the marks** at KIPI in BirgenAI Hub's name after a clearance search: ConnectedSuite, CallBox, The Interchange, PeopleHub, Ledgerly and Riri.
5. **Data protection.** Register BirgenAI Hub with the Office of the Data Protection Commissioner as a data processor, since it is now the processor named in every agreement.

07 Share design: keeping the vote

CLASS	HELD BY	VOTES	ECONOMICS
Class A ordinary	You	10 votes per share	Ordinary
Class B ordinary	Option pool, later co-founders	None, or 1 per share	Ordinary
Preference shares	Investors, on conversion	1 per share on a limited list of protective matters	1× non-participating liquidation preference

- **Board.** Articles let the Class A holder appoint a majority of directors. Start with three: you plus two you appoint.
- **Reserved matters** needing your consent: selling the company or the IP, issuing shares, changing the articles, appointing or removing the CEO, licensing the source code.
- **Accept** normal investor protections: information rights, pro-rata rights, a veto on changing their own share rights. **Resist**: a board majority, budget or hiring vetoes, a veto on partner agreements, and full-ratchet anti-dilution.
- **Dilution budget.** Pre-seed 10–15%, seed 15–20%, option pool 10%. That leaves roughly 55–65% of the economics after a seed round, and far more of the vote.
- **If a partner insists on equity:** a performance warrant from BirgenAI Hub of at most 1–2%, non-voting, vesting only on delivered milestones, lapsing if the partnership ends.

08 Money and tax hygiene

- **One company, one account.** BirgenAI Hub's till and bank account are the company's. Pay yourself by salary or dividend, never by drawing on the till.
- **eTIMS.** Lenders can deduct only expenses backed by eTIMS invoices. Until the billing module submits to eTIMS, issue each month's eTIMS invoice beside the console PDF.
- **VAT** once taxable turnover approaches KES 5 million a year. The invoice code then adds it, and the rate card already prices the bureau's own VAT.
- **Reconcile monthly**: every till receipt against an invoice number, and every Interchange statement against Micromart's settlement.

09 Your checklist

#	ACTION	BY
1	Confirm Till 5620596 is registered to BirgenAI Hub Limited; set BILLING_ISSUER_KRA_PIN.	31 Oct
2	Deploy the two-issuer billing (it issues November's invoices on 1 Nov) and set the M-PESA prompt keys for the till.	31 Oct
3	Meet Sammy Kegode on clauses 10.2 and 11.1; agree the distribution terms.	Week of 2 Nov
4	Send Axe the Interchange API Rate Card; Micromart decides the shared lane (Schedule 4).	This week
5	Four-party signing of TC-FPA-2026-02, after each advocate's review.	November

6	Deed of assignment of IP to BirgenAI Hub; repositories to a company organisation; domain and server ownership confirmed.	November
7	PeopleHub: Axe's inputs (blueprint §7), pilot 16–30 Nov, acceptance by 4 Dec.	November
8	Regulatory opinion on the Interchange; Metropol's position on the shared lane.	December

General guidance written to help you prepare. It is not legal or tax advice. Kenyan company, tax, data-protection and credit-information law should be confirmed by a qualified advocate and tax adviser before you act.